Regional Transportation District

Contracting and Procurement

1660 Blake St.
Denver, CO 80202

Request for Proposal

126DM016

BUS SHELTER MAINTENANCE SERVICES (15% SBE GOAL)

October 6, 2026

RESPONSES MUST BE SUBMITTED ELECTRONICALLY TO:

https://procurement.opengov.com/portal/rtd-denver

Regional Transportation District

REQUEST FOR PROPOSAL

Bus Shelter Maintenance Services (15% SBE Goal)

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A - Bus Shelter Maintenance Services SOW 2026

B - 126DM006 Form of Contract

C - 126DM016 Pricing Sheet

1. INTRODUCTION

RTD is seeking responses from qualified respondents to provide: Bus Shelter Maintenance Services (15% SBE Goal)

1.1. Summary

RTD is seeking responses from qualified respondents to provide custodial services, graffiti removal, and snow removal at RTD Shelters on North and South Federal, "Group 3" shelters, Federal and Colfax transfer center, and Federal and Evans transfer Center.

1.2. Contact Information

Marla Bainbridge
Procurement Specialist
Email: marla.bainbridge@rtd-denver.com
Phone: (303) 299-2411

Department:
Capital Programs

1.3. Timeline

RFP advertised	October 6, 2026
Pre-proposal briefing (Non-Mandatory)	October 26, 2026, 2:00pm Microsoft Teams meeting Join: https://teams.microsoft.com/meet/225301395278793?p=U60izmGPWH0EXJxFs4 Meeting ID: 225 301 395 278 793 Passcode: 6WG6s5x2
Inquiry Period	November 2, 2026, 2:00pm
RTD sends responses to written inquiries	November 5, 2026, 2:00pm
Proposals due	November 16, 2026, 2:00pm

RTD anticipates making final selection.	December 4, 2026

2. INSTRUCTIONS TO PROPOSERS

2.1. Work

RTD will accept proposals from qualified companies until 2:00 pm on Monday, November 16, 2026 via RTD's online procurement portal, OpenGov. This Request for Proposal ("RFP") is for Bus Shelter Maintenance Services (15% SBE Goal), per the enclosed specifications and requirements. RTD may award multiple contracts from this RFP.

2.2. Cost Type

Payments are anticipated to be made on a Fixed Price basis.

2.3. Award of Contract

Award of a Contract from this RFP will be based upon Best Value competitive proposal procedures.

2.4. Period of Performance

Subject to the Termination provision of the Contract, performance shall commence as of the Effective Date (or in the event that RTD provides a Notice to Proceed to the Contractor, the Period of Performance shall commence on the date of the Notice to Proceed) and shall continue for 3 years (subject to the exercise of any option periods).

2.5. Options for this Contract

This Contract has the potential for two (2) 1-year options to extend the Period of Performance.

2.6. Small Business Requirement for Contracts with an SBE Goal

RTD has specified a SBE participation goal of 15% for the Work to be performed under the Contract. Proposers must make adequate good faith efforts to meet this goal in order to be deemed as a responsive and responsible proposer. Award of the Contract will be conditioned on meeting the requirements of this section. 49 CFR Part 26.53 and Appendix A of 49 CFR Part 26 shall serve as the criteria for evaluating compliance with the good faith efforts requirements. Additionally, proposers are required to solicit the support and assistance of RTD's Small Business Opportunity Office if they are unable to meet the SBE participation goal assigned to this Contract. The proposers can meet this requirement in one of two ways:

First, the proposer can meet this goal by demonstrating and documenting its commitments for participation by SBEs for at least the total percentage identified above or a percentage that exceeds the goal for the project. The SBE Contract Requirements

as well as 49 CFR Part 26.53 explain the procedures that recipients/agencies such as RTD should follow in this situation. For purposes of this section, RTD will accept SBEs that are currently certified with the RTD Small Business Opportunity Office under the NAICS code that coincides with the Scope of Work that they will execute in this project. All SBEs must be certified prior to the proposal submission, except in a "design-build" or "turnkey" contracting situation, multi-year projects, or some on-call or work order projects where RTD will explain its procedure in the SBE Contract Requirements. Second, if the proposer does not meet the SBE goal identified in this Contract or is able to only meet part of this goal, it must document adequate good faith efforts. Appendix A to 49 CFR part 26 clearly states, "This means that the proposer must show that it took all necessary and reasonable steps to achieve a SBE goal or other requirement of this part which, by their scope, intensity, and appropriateness to the objective, could reasonably be expected to obtain sufficient SBE participation, even if they were not fully successful." Additionally, SBE Contract Requirements as well as 49 CFR Part 26.53 explain the good faith efforts procedures that recipients/agencies such as RTD should follow when a proposer does not meet the goal.

The SBE participation goal applies to the total value of the Contract including all pre-award negotiation results and post-award change orders/modifications. Submittals of the proposer's SBE Plan/Program will be evaluated based on the proposer's SBE approach, creativity, demonstrated commitment to RTD's SBE and diversity programs, ability to successfully respond to project SBE participation goals and compliance with overall SBE program requirements as codified in 49 CFR Part 26 and RTD's SBE Program.

2.7. Proposals Valid

Proposals shall be valid for a duration of no less than ninety (90) days from proposal due date.

3. GENERAL INSTRUCTIONS

3.1. General

A. Each proposer is solely responsible for submitting any necessary forms and certifications that may be required by the RFP. Enclosed is a copy of the Contract contemplated for award substantially in the form to be executed.

B. A list of all holders ("followers") of the RFP is available for view and/or print on the online procurement portal. The list is obtainable from the RFP advertisement date through the RFP close date.

3.2. Option(s)

If RTD has included the potential for options on this Contract, proposals should be adjusted to cover such option(s). The option quantities or periods contained in the proposal shall be evaluated in order to determine Contract award. When options have not been evaluated as part of the award, the exercise of such options will be considered "sole source" procurements. RTD will evaluate proposals for award purposes by adding the total proposed price for all options to the total proposed price for the initial term of the Contract. Award of a Contract containing options shall not obligate RTD to exercise such option(s).

3.3. Addenda to RFP

In the event that it becomes necessary to revise any part of this RFP, or if additional information is necessary to enable potential proposers to make an adequate interpretation of the provisions of this RFP, an addendum to the RFP will be provided to each recipient of this RFP through RTD's online procurement portal.

3.4. Inquiries

Questions about RTD and this RFP shall be directed to Marla Bainbridge, Procurement Specialist, through RTD's online procurement portal.

A. From the issuance date of this RFP until RTD selects a proposal for award, Marla Bainbridge, Procurement Specialist, is the sole point of contact for RTD and RTD's project team members concerning this RFP. (In this RFP and the Contract Documents, this point of contact may be referred to as the Contract Administrator, Contracting Officer, Purchasing Agent, Buyer, or the like.) Any violation of this condition may be cause for RTD to reject the offending proposer's proposal. If RTD later discovers that the proposer has engaged in any violations of this condition, RTD may reject the offending proposer's proposal or rescind its Contract award. Proposers must agree not to distribute any part of their proposals beyond RTD. A proposer that shares information contained in its

proposal with other RTD personnel, RTD project team members, RTD board members, and/or competing proposer personnel may be disqualified.

B. Proposers' questions must be submitted through RTD's online procurement portal. All questions or requests for clarifications regarding this solicitation, including the form of the Contract, must be made during the Inquiry Period. RTD has no obligation to respond to questions or requests for clarifications that are not submitted through RTD's online procurement portal, nor to those submitted outside of the Inquiry Period. Except as provided below, RTD's responses to all inquiries properly submitted will be answered in the form of an addendum that will be provided to all recipients of this RFP through RTD's online procurement portal. **To the extent that Proposers request changes to the form of the Contract, including additional terms, conditions, and agreements (such as license agreements, master services agreements, and user agreements), such requested changes must be submitted with proposals.** See "Legal Notice to Proposers - Rights Reserved to RTD."

C. If the RFP Schedule provides for a pre-proposal briefing ("Briefing"), RTD will not respond to any questions regarding the RFP until the Briefing. Firms that have received this RFP, whether present for the Briefing or not, will receive: (1) a copy of the minutes; (2) answers to all questions presented; (3) a listing of all recipients of the RFP (current to date of Briefing), and (4) a copy of the sign-in sheet from the Briefing.

If a Respondent needs assistance using the online procurement portal, Respondents may access the Help Center for vendor training guides provided by OpenGov ("Software Administrator"). Respondents may also contact the Software Administrator using the real-time chat function on the online procurement portal (located in lower right-hand corner of the screen), or via email at procurement-support@opengov.com for support.

3.5. Submission & Withdrawal

Respondents shall register on RTD's online procurement portal. Once registered, Respondents may view and click "Follow" to be a Prospective Respondent for this RFP and will appear on the Follower's list. Respondents that fail to Follow this project will not receive automated Addenda notifications, nor will they be able to submit a Response in the online procurement portal, and therefore will be unable to participate, nor be considered for this RFP. Respondents must click "Draft Response" to properly begin and submit a Response via the online procurement portal.

RTD will accept responses to this RFP electronically via the online procurement portal until 2:00 pm on Monday, November 16, 2026. Responses received after the scheduled due date and time for submission will not be accepted. Responses submitted in any

other format other than via the online procurement portal, including but not limited to, hard copy (mailed or hand delivered), facsimile, or emailed submittals, will not be accepted.

RTD and the Software Administrator are not responsible for untimely submissions due to personal or company internet or hardware limitations, settings or restrictions, internet speed, power outage, network connection, or use of a malfunctioning electronic device, or the like. Respondents are solely responsible for the capability of their computer system while responding to this RFP and for the stability of their internet service. Failure of the Respondent to successfully submit an electronic Response before the deadline indicated herein shall be at the Respondent's sole risk, and RTD will not accept late and/or improperly submitted Responses. Once file(s) have been uploaded and the Submission Status shows as "Submitted," a submission is complete. At that point, the Respondent will also receive an email confirmation from the online procurement portal. Respondents may withdraw their submittal electronically via the online procurement portal at any time prior to the scheduled due date and time for submission.

Proposals that are late will not be accepted.

4. PROPOSALS

4.1. Submission Requirements

A. Any alteration, insertion, or erasure by the proposer in the form of the RFP documents as originally prepared by RTD shall render the accompanying proposal non-responsive and may constitute cause for rejection. Conditional proposals or those that take exception to the RFP documents or Scope of Work may be treated as non-responsive.

B. Proposal Submission. RTD's Procurement Specialist must receive through RTD's online procurement portal all required documents in a format that complies with Level AA of the Web Content Accessibility Guidelines 2.1 of the World Wide Web Consortium (W3C) Web Accessibility Initiative. Proposal submittal requirements are located in the PROPOSAL CONTENTS CHECKLIST (FORMS TO BE SUBMITTED).
Your proposal must be received no later than the time and date set forth in the RFP Schedule.

C. Signatures. Proposals must be signed by a duly authorized official of the firm. Proposals submitted by consortiums, joint ventures, or teams, although permitted and encouraged, will not be considered responsive unless it is established that all contractual responsibility rests solely with one contractor or one legal entity which shall not be a subsidiary or affiliate with limited resources. Each submittal should indicate the entity responsible for execution on behalf of the consortium, joint venture, or team.

D. Proposal Format.

1. Technical proposals should not exceed 30 pages. (One "page" is defined as one standard 8½ x 11-inch sheet of paper in Times New Roman, in no less than 12-point font.) All charts, graphic displays, etc., must be of readable size. Foldouts to illustrate particular items are permitted but will be included in page count. Cover letters should be no longer than two pages.

2. Submission of standard promotional material and corporate literature not specifically requested by RTD is discouraged. Any such information may not be fully considered in the evaluation.

4.2. Technical Proposal

A. A cover letter (maximum two pages) briefly describing the firm or firms (including subcontractors, if any) on the proposed project team, referencing the RFP by name and number.

B. A detailed technical proposal (maximum NO VALUE) in narrative form describing the proposer and proposed team. Proposals shall include the following items in the order listed below and shall not exceed the page limit indicated above, excluding attachments. Items that will not be counted in the page limit are: the firm's cover letter, résumés, and certifications. Proposals shall address the following:

   1. Previous experience of the proposed team (including subcontractors) and key personnel in performing on projects of a similar nature and scope.
   2. A demonstrated ability to perform under the Contract.
   3. Plans on how to approach scope of work
      - Custodial plan
      - Graffiti removal plan
      - Staffing plan
      - Equipment plan
      - Quality control plan

C. Supplemental project information appendix, including:

   1. Description, including name of client, of at least two recent projects that demonstrate successful completion of projects of similar nature and scope. Clients may be contacted for references.
   2. An organizational chart for each firm on the proposed team and résumés for all staff listed on the organizational chart.
   3. Résumés of all proposed key personnel and the availability during Contract performance periods of all key personnel.

D. Completed forms and certifications required by the RFP.

E. One "Open Records" copy of your technical proposal per the Colorado Open Records Act, C.R.S. § 24-72-200.1 et seq. (as amended), including the redaction of any confidential or proprietary information. Submit as the Open Records Technical Proposal in the Proposal Contents Checklist (FORMS TO BE COMPLETED).

4.3. Contract Cost Proposal

Each proposer shall submit one copy only of the information required below:

1. Cost proposals must clearly identify pricing proposed for the type of Contract to be awarded. If there are option years available, include option pricing on the cost proposal.
2. One "Open Records" copy of your cost proposal per the Colorado Open Records Act, C.R.S. § 24-72-200.1 et seq. (as amended), including the redaction of any confidential or proprietary information. To do this you will have to export the Pricing Form or Cost Submittal Form, redact sensitive data, and then submit it as the Open Records Cost Proposal in the Proposal Contents Checklist (FORMS TO BE COMPLETED).

4.4. Only One Proposal Accepted

RTD will accept only one proposal for the Work from any one proposer. This includes proposals that may be submitted under different names by one firm or corporation.

4.5. Conflicting Information from Proposer

The information and/or pricing provided by the proposer in the required proposal will control in the event of a conflict with any information and/or pricing the proposer types into RTD's online procurement portal when submitting the proposal.

5. AWARD PROCESS

A. Notification to Successful Proposer. Award decisions of RTD shall be reduced to writing by the Director of Contracting and Procurement, or delegate, and shall be final. RTD will notify the successful proposer, if any, by sending a notice of intent to award, which is subject to any required RTD approval. Following RTD approval, the Procurement Specialist will initiate the Contract signature process and then issue the notice to proceed with the executed Contract.

B. Notifications to Unsuccessful Proposers.

1. Pre- and Post-Award Notices of Exclusion. The Procurement Specialist shall notify unsuccessful proposers through RTD's online procurement portal of exclusion from award. Requests for a debriefing must be submitted to the Procurement Specialist within three days of receipt of such notice. Debriefings requested for and provided prior to Contract award shall address only the requesting proposer's proposal; post-award debriefings may address all proposals submitted. Only one pre-award or post-award debriefing shall be provided per proposer.

2. Protests. Proposers must submit protests related to this RFP in writing to Procurement Specialist pursuant to the procedures set forth in RTD's procurement standards manual. Copies of RTD's protest procedures are available upon request to Procurement Specialist. Proposers must exhaust all administrative remedies prescribed by RTD's protest procedures before proceeding to court.

C. Evaluation Criteria. Proposals will be evaluated according to the following criteria, listed in descending order of importance:

No.	Evaluation Criteria	Scoring Method	Weight (Points)
1.	**Approach to accomplishing the expectations stated above, ensuring that entire scope of services is fully executed to the satisfaction of RTD. Understanding SOW/completeness of plans**	0-100 Points	30 *(30% of Total)*
2.	**Past relevant experience with the subject matter. Consider references. Experience working with government entities a plus**	0-100 Points	30 *(30% of Total)*
3.	**Cost**	0-100 Points	40 *(40% of Total)*

6. LEGAL NOTICE TO PROPOSERS

6.1. Organizational Conflict of Interest

A. The proposer shall review the attached Organizational Conflicts of Interest Disclosure Requirements and submit its Organizational Conflicts of Interest Certification with the proposal.

B. If the proposer prepared or assisted RTD in the preparation of a statement of work, work program, or system specifications to be used in a competitive procurement by RTD, the proposer will be ineligible to supply the same in connection with this Contract. The proposer may otherwise compete for RTD business on an equal basis with other parties.

C. Except as provided above, if RTD determines that a potential conflict exists, the proposer shall be excluded from award unless the conflict can be avoided or otherwise resolved through the inclusion of a special Contract provision or other appropriate means.

6.2. Insurance and Bond Requirements

Proposer's attention is directed to the section entitled Insurance and Bond Requirements herein. It is highly recommended that proposers confer with their insurance carriers or brokers in advance of proposal submission to determine the availability of bonds, insurance certificates and any endorsements. The cost of such insurance and bonds shall be included in the proposal.

6.3. SBE Compliance

Proposers must make adequate good faith efforts to meet this goal in order to be deemed as a responsive and responsible proposer. Award of the Contract will be conditioned on meeting the requirements of this section. 49 CFR Part 26.53, Appendix A of 49 CFR Part 26 and SBE Contract Requirements shall serve as the criteria for evaluating compliance with the good faith efforts requirements.

6.4. News Releases

RTD’s written approval is required prior to any communication with the press or any public disclosure relating to this RFP or any subsequent awards.

6.5. Pre-Award Audit

RTD reserves the right to conduct a pre-award audit to verify labor rates, overhead rates, *etc*. should RTD determine that such an audit is required prior to negotiation or award of a Contract.

6.6. Cost of Proposal Preparation

RTD shall not reimburse proposers for costs incurred for preparation of proposals or required documentation.

6.7. Materials Submitted

All materials submitted shall become the property of RTD and will not be returned to the proposer.

6.8. Confidentiality

RTD is a public entity subject to the provisions of the Colorado Open Records Act, C.R.S. § 24-72-200.1 et seq. ("CORA"), and all materials submitted with this RFP, with the exception of trade secrets, privileged information, and confidential commercial, financial, geological, or geophysical data pursuant to C.R.S. § 24-72-204(3)(a)(IV), may become public records subject to inspection by the public at any time after the Contract is executed. Therefore, any confidential or proprietary information that the proposer discloses to RTD with respect to this RFP must be clearly designated as confidential or proprietary at the time of disclosure by the proposer to RTD. RTD shall not disclose properly designated information unless such information is required to be disclosed by law or court order. In the event of a legal challenge to the confidentiality of records so designated by the proposer, RTD shall make reasonable efforts to notify the proposer prior to disclosing any such information, and in some cases may tender to the proposer the defense of any action filed. By submitting a proposal under this RFP, the proposer agrees to accept such tender of defense and in all cases assumes exclusive responsibility for defending its position as to the confidentiality of the requested information. RTD is not obligated to assist in such defense, and cannot and does not guarantee that the confidentiality of records so designated will be upheld by a reviewing court. **If the proposer fails to submit a copy of its redacted proposal that may be released under CORA, the proposer acknowledges that RTD has the authority to disclose, and may disclose in its discretion, any information contained in the proposal in response to a CORA request.**

6.9. Rights Reserved to RTD

A. All proposers are notified that the award of a Contract pursuant to this RFP is dependent upon execution of a Contract with the successful proposer(s) and appropriation by RTD's Board of Directors of the necessary funds. **Successful proposers must be prepared to execute the Contract that is provided with this RFP. RTD has no obligation to accept requested changes to the form of the Contract . PROPOSERS' REQUESTED CHANGES, INCLUDING ADDITIONAL TERMS, CONDITIONS, AND AGREEMENTS**

(SUCH AS LICENSE AGREEMENTS, MASTER SERVICES AGREEMENTS, AND USER AGREEMENTS), MUST BE SUBMITTED WITH PROPOSALS. At RTD's sole discretion, RTD may deny any requested changes submitted after the deadline for proposal submission. Requested changes must be specific (including, as applicable, section reference, reason for requested change and proposed revised language) and clearly identified in a proposal. If a proposer does not submit any requested Contract changes, the proposer will be deemed to have accepted the terms, conditions, and requirements of this solicitation, including the form of Contract.

RTD will not accept blanket exceptions to any or all terms, conditions or requirements of this solicitation to be negotiated at a later date. At RTD's sole discretion, RTD may deny requested changes that are embedded by hyperlink or cited by reference in a proposal and related documents. FAILURE TO ACCEPT THE TERMS AND CONDITIONS IN THIS SOLICITATION MAY RESULT IN A PROPOSER BEING DEEMED NON-RESPONSIVE.

B. It is the intent of RTD to make an award within 60 days from the proposal due date; however, all proposals shall be valid for no less than ninety (90) days.

C. RTD reserves the right to reject all offers and re-solicit or cancel this RFP if deemed by RTD to be in its best interest.

D. RTD reserves the right to enter into a Contract with any proposer based upon the initial proposal or on the basis of a best and final offer without conducting oral discussions.

6.10. Prohibited Interests

A. No employee of RTD or any member of its governing body shall have any personal or financial interest, direct or indirect, in this Contract or any contract executed subsequently in connection with this Contract during his or her tenure or for one year thereafter. No director, officer, employee, or agent of RTD shall be interested in any contract or transaction with RTD except in his or her official representative capacity.

B. No member of or delegate to Congress, or resident commissioner, shall be admitted to any share or part of any Contract awarded, or to any benefit arising from it.

6.11. Competition in Subcontracting

Proposers shall select subcontractors (including suppliers) on a competitive basis to the maximum practicable extent consistent with the objectives and requirements of any Contract awarded.

6.12. Personnel Availability

By submitting its proposal, the proposer certifies that it and each of its subcontractors possess an adequate supply of workers qualified to perform the work specified within the Contract schedule; that there is no existing or impending dispute between it and any labor organization; and that it is prepared to comply fully with prevailing wage requirements, minimum wages, maximum hours of work, and equal opportunity provisions contained in the Contract Terms and Conditions.

7. PROPOSAL CONTENTS CHECKLIST (FORMS TO BE SUBMITTED)

Note to Respondents: In order to download the submittal forms in the "Forms to be Completed and Submittal Requirements section," Respondents must download them directly from the online procurement portal.

Please only include cost in designated "cost" sections, or cost table if provided. Any cost information submitted or duplicated in other sections may result in response disqualification.

7.1. In addition to any information required elsewhere in this Solicitation and in the Scope of Work, all responses shall contain and will be evaluated based on the following sections:

7.1.1. Name and Title of Individual(s) Authorized to Sign the Contract*
Please enter the **full name(s)** and **title(s)** and **email address(es)** of the individual(s) authorized to sign the contract if awarded to your company. Only list multiple names if multiple individuals are required to sign.

*Response required

7.1.2. Name and Title of Respondent's Authorized Official*
The following questions are prepared in electronic format, and the Respondent is required to respond in this format. All required certifications, documentation, and response information below shall be answered and provided by an authorized official with binding authority. Electronic selections and confirmations shall be as binding as a signature from the authorized official submitting this response on behalf of the Respondent.

Please type the full name and title of the authorized official electronically submitting this response.

*Response required

7.1.3. I certify that I have read, understood, and agree to be bound to the terms in the General Instructions, Solicitation Instructions, Award Process, and Legal Notice in this solicitation, and that I am authorized to submit this response on behalf of my organization.*
☐ Please confirm

*Response required

7.1.4. I certify that I have read, understood and agree, on behalf of the firm submitting this response, to the terms and conditions including, but not

limited to, the insurance requirements set forth herein with the exception of any modification requests approved by RTD during the Q&A period.*

☐ Please confirm

*Response required

7.1.5. TECHNICAL PROPOSAL*

Submit your Technical Proposal per the instructions in the solicitation.

DO NOT INCLUDE ANY COST PROPOSAL INFORMATION IN YOUR TECHNICAL PROPOSAL OR IT MAY BE DEEMED NON-RESPONSIVE.

*Response required

7.1.6. Open Records Copy of Technical Proposal

Submit your Open Records Copy of Technical Proposal per the instructions in the solicitation.

DO NOT INCLUDE ANY COST PROPOSAL INFORMATION IN YOUR TECHNICAL PROPOSAL OR IT MAY BE DEEMED NON-RESPONSIVE.

7.1.7. COST PROPOSAL *

Submit your Cost Proposal per the instructions in the solicitation.

THIS SECTION IS FOR COST ONLY. PLEASE DO NOT INCLUDE ANY ADDITIONAL INFORMATION HERE.

*Response required

7.1.8. Open Records Copy of Cost Proposal

Submit your Open Records Copy of Cost Proposal per the instructions in the solicitation.

THIS SECTION IS FOR COST ONLY. PLEASE DO NOT INCLUDE ANY ADDITIONAL INFORMATION HERE.

7.1.9. SBE CONTRACT REQUIREMENTS CERTIFICATION*

The Respondent hereby certifies that it has reviewed, understands, and agrees to comply with the requirements of RTD's SBE Contract Requirements (the SBE Contract Requirements may be accessed directly at https://www.rtd-denver.com/downloads/sbe-contract-requirements) and 49 CFR Part 26 for the entire duration of this Contract. The Respondent also agrees to:

A. Comply with and implement all requirements of RTD's SBE Contract Requirements and 49 CFR Part 26 in the award and administration of subcontracts under this Contract;

B. Perform its obligations and shall require each Subcontractor regardless of the tier to perform its respective obligations under this Contract and the Subcontract(s) in accordance with RTD's SBE Contract Requirements;

C. Provide each Subcontractor with a copy of RTD's SBE Contract Requirements; and

D. Insert all flow-down provisions in SBE Flow-Down Provision section of the Contract into each Subcontract regardless of the tier.

☐ Please confirm

*Response required

7.1.10. SBE Required Enclosures*
Please download the documents available at this link https://www.rtd-denver.com/downloads/sbe-enclosures. Complete and upload the enclosures.

*Response required

7.1.11. ORGANIZATIONAL CONFLICT OF INTEREST DISCLOSURE REQUIREMENTS*

A. Organizational conflict of interest means that, because of other activities or relationships with other persons, a person is unable or potentially unable to render impartial assistance or advice to RTD, or the person's objectivity in performing the Work is or might be otherwise impaired, or a person has an unfair competitive advantage.

B. Each firm responding to the Solicitation shall provide the statement described in paragraph (c). This requirement will apply individually to any of the firm's consultants or lower-tier subcontractors that also furnish Work in performance of the Contract to be awarded.

C. The statement must contain the following:

1. Name of the firm and the number of the Solicitation in question.

2. The name, address, telephone number, and federal taxpayer identification number, if applicable, of the firm.

3. A description of the nature of the Work rendered by or to be rendered on the Contract or related to the Contract.

4. A statement of any past (within the past 12 months), present, or currently planned financial, contractual, organizational, or other interests relating to the performance of the Contract. For contractual interests, such statement must include the name, address, and telephone number of the client or client(s), a description of the services rendered to the previous client(s), and the name of a responsible officer or employee of the firm who is knowledgeable about the services rendered to each client, if, in the 12 months preceding the date of the statement, services were rendered to RTD or any other client respecting the same subject matter of the Solicitation or directly relating to such subject matter. The client and contract number under which the services were rendered must also be included, if applicable. For financial interests, the statement must include the nature and extent of the interest and any entity or entities involved in the financial relationship. For these and any other interests, enough information must be provided to allow a meaningful evaluation of the potential effect of the interest on the performance of the Contract.

5. A statement that no actual or potential conflict of interest or unfair competitive advantage exists with respect to the Work to be provided in connection with the Contract or that any actual or potential conflict of interest or unfair competitive advantage that does or may exist with respect to the Contract or related to the Contract has been communicated as part of the statement required by section (c).

D. Failure of a firm to provide the required statement may result in the firm being determined ineligible for award. Misrepresentation or failure to report any fact may result in the assessment of penalties associated with false statements or such other provisions provided for by law or regulation.

ORGANIZATIONAL CONFLICT OF INTEREST CERTIFICATION

If the Respondent is aware of information bearing on whether a potential conflict may exist, the Respondent shall provide a disclosure statement describing this information as described in the Disclosure Requirements above.

☐ The Respondent IS aware of any information bearing on the existence of any potential organizational conflict of interest as described in the Disclosure Requirements.
☐ The Respondent IS NOT aware of any information bearing on the existence of any potential organizational conflict of interest as described in the Disclosure Requirements.
*Response required

7.1.12. Current W9 *
Please download the below documents, complete, and upload.

- 02.12_W9_updated_1822.pdf

*Response required

7.1.13. KEY PERSONNEL*
Please download the below documents, complete, and upload.

- Key_Personnel.docx

*Response required

7.1.14. The Respondent understands that any condition stated above, clarification of the above, or information submitted on or with this form other than requested will render the quotation non-responsive.*
☐ Please confirm

*Response required

8. SCOPE OF WORK SERVICES/TECHNICAL SPECIFICATIONS

See Attachments for the Scope of Work/Technical Specifications.

8.1. Scope of Work

See attachment A